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Superior Court of California,
County of Alameda

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SUPERIOR COURT OF THE STATE OF CALIFORNIA

IN AND FOR THE COUNTY OF ALAMEDA

GREEN SANDS INVESTMENT CLUB B,
LLC, a Delaware limited liability company,

Plaintiff,

v.

CRYPTO LOTUS FUND A, LP, a Delaware
limited partnership; JONAS LAUREN NORR,
an individual; and Does 1 through 100,
inclusive,

Defendants.

Case No.: 22CV008125

**NOTICE OF MOTION AND MOTION TO
COMPEL ARBITRATION AND DISMISS
OR STAY JUDICIAL PROCEEDINGS, AND
FOR ATTORNEY'S FEES, COSTS, AND
EXPENSES**

Date: October 26, 2022
Time: 2:30 P.M.
Dept.: 518
Judge: Hon. Dennis Hayashi
Reservation ID: 517154810574

TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD,

PLEASE TAKE NOTICE that on October 26, 2022, at 2:30 p.m. in Department 518 of the
above-captioned Court, located at Hayward Hall of Justice, 24405 Amador Street, Hayward, CA

1 94544, Defendants CRYPTO LOTUS FUND A, LP, a Delaware limited partnership, and JONAS
2 LAUREN NORR, an individual, ("Defendants") hereby make this motion to compel arbitration
3 and dismiss or stay judicial proceedings and for attorney's fees, costs, and expenses (the "Motion").

4 This Motion is made on the grounds that the claims of Plaintiff GREEN SANDS
5 INVESTMENT CLUB B, LLC ("Plaintiff") are encompassed within the scope of the arbitration
6 agreement included in the agreement Plaintiff and Defendants entered into that is the basis for
7 Plaintiff's claims in its Complaint, and that Plaintiff has refused to agree to arbitrate its claims.

8 Defendants respectfully submit that:

- 9 a) All of Plaintiff's claims are subject to a broad arbitration clause;
10 b) The governing law of Delaware accordingly requires that Plaintiff's complaint be
11 dismissed and that Plaintiff be compelled to arbitrate its claims (or, alternatively, that
12 California law requires a stay of judicial proceedings pending arbitration); and
13 c) Defendants are entitled to an award of attorney's fees, costs, and expenses as the
14 prevailing party of this Motion.

15 This Motion is based upon this Notice, the attached Memorandum of Points and
16 Authorities, Defendant's Request for Judicial Notice, the Declaration of Gregory K. Klingsporn, the
17 Declaration of Jonas Lauren Norr, all the pleadings, records, and papers on file in this action, and
18 upon such further oral and documentary evidence as may be presented at the hearing of this motion.

19 Respectfully submitted,

20 Dated: May 20, 2022

JORGENSEN, SIEGEL
McCLURE & FLEGEL, LLP

22 Of counsel:

23 Samuel J. Lieberman
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Gregory K. Klingsporn

Attorneys for Defendants

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PROOF OF SERVICE BY E-MAIL
(CCP 1013a, 2015.5)

I declare that I am a citizen of the United States and that I am over the age of 18 years, employed in the County of San Mateo, and not a party to the within action; my business address is 1100 Alma Street, Suite 210, Menlo Park, CA 94025.

On May 20, 2022, I caused a copy of the following: **NOTICE OF MOTION AND MOTION TO COMPEL ARBITRATION AND DISMISS OR STAY JUDICIAL PROCEEDINGS, AND FOR ATTORNEY'S FEES, COSTS, AND EXPENSES** to be sent from email address jlb@jsmf.com to persons at the email addresses listed below:

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Attorneys for Plaintiffs Green Sands Investment Club B, LLC

I did not receive within a reasonable time of the transmission, any electronic message or other indication that the transmission was unsuccessful.

I declare under penalty of perjury under the laws of the State of California that the foregoing are true and correct. Executed at Menlo Park, California, on May 20, 2022.



JANET BILLUPS